

AMENDMENT AND BASIC STRUCTURE

CHANGE ROUTES → ARTICLE 368 PROCEDURE → FEDERAL RATIFICATION → CASE CHRONOLOGY → BASIC ELEMENTS → NINTH SCHEDULE → ANJUM BOUNDARY → CURRENT EVIDENCE → DOCTRINE EVALUATION → PYQ/TRAPS → ANSWER ROUTES

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW Approval: FALSE • Pending user review • active generation g6 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00

CHANGE WITHOUT CONSTITUTIONAL DESTRUCTION

SIMPLE MAJORITYARTICLE 368SPECIAL MAJORITYSTATE RATIFICATIONCONSTITUENT POWERADDITIONVARIATIONREPEAL

THREE ROUTES

- Simple-majority constitutional change lies outside Article 368.
- Most amendments use the dual special majority.
- Entrenched federal subjects also need ratification by at least half of States.

POWER DISTINCTION

- Ordinary legislative power changes law within competence.
- Constituent power changes constitutional text.
- Article 368 permits addition, variation or repeal.

SUBSTANTIVE LIMIT

- Every provision is amendable.
- Basic structure protects constitutional identity.
- The power to amend is not a power to destroy or replace the Constitution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India does not adopt the United Kingdom's ordinary-legislation model for every constitutional change or the United States' high federal ratification threshold for every amendment.

01

STAGE 01

ARTICLE 368 PROCEDURE AND DUAL MAJORITY

EITHER HOUSENO PRIOR RECOMMENDATIONTOTAL MEMBERSHIPTWO-THIRDS PRESENT AND VOTINGNO JOINT SITTINGSTATE RATIFICATIONPRESIDENT SHALL ASSENT

Introduce

→

Each House passes both limbs

→

Obtain State ratification if required

→

President shall assent

INTRODUCTION

- Bill may originate in either House.
- Minister or private member may introduce it.
- No prior Presidential recommendation is required.

PASSAGE

- Each House separately satisfies both majority limbs.
- Failure in either House ends the Bill.
- There is no joint sitting.

COMPLETION

- Required States ratify the passed text when the proviso applies.
- States cannot amend the Bill.
- After due passage, the President shall assent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 107(5) states that a Bill pending in Rajya Sabha which Lok Sabha has not passed does not lapse merely because Lok Sabha is dissolved.

02

STAGE 02

FEDERAL RATIFICATION: THE EXACT PROVISO LIST

ARTICLES 54-55ARTICLES 73 AND 162SUPREME COURTHIGH COURTPART XI CHAPTER 1SEVENTH SCHEDULESTATE REPRESENTATIONARTICLE 368

| Category             | Proviso subjects                  |
|----------------------|-----------------------------------|
| Executive            | 54, 55, 73, 162                   |
| Judiciary            | SC and HC chapters                |
| Federal distribution | Part XI Chapter 1: Lists          |
| Federal voice        | State representation; Article 368 |

FEDERAL ORGANS

- Election of President: Articles 54 and 55.
- Union and State executive power: Articles 73 and 162.
- Supreme Court and High Court chapters.

POWER DISTRIBUTION

- Chapter I of Part XI.
- Any Seventh Schedule List.
- Representation of States in Parliament.

SELF-ENTRENCHMENT / LIMIT

- Article 368 itself.
- At least half, not all, States ratify.
- Federal consequence alone does not trigger ratification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The list protects the federal bargain by requiring State consent where an amendment changes the Union-State constitutional compact or the States' voice in national institutions.

03

STAGE 03

CASE CHRONOLOGY: AMENDABILITY TO CONSTITUTIONAL IDENTITY

SHANKARI PRASAD (1951)SAJJAN SINGH (1964)I.C. GOLAKNATH (1967)24TH AMENDMENTKESAVANANDA BHARATI (1973)INDIRA NEHRU GANDHI V. RAJ NARAIN (1975)MINERVA MILLS (1980)WAMAN RAO (1980)I.R. COELHO (2007)

1951-65 amendability

→

I.C. Golaknath (1967)

→

1971 amendments

→

Kesavananda Bharati (1973)

→

1975-80 applications

1981-2007 Ninth Schedule

AMENDABILITY CONFLICT

- Shankari Prasad (1951) and Sajjan Singh (1964) allowed FR amendment.
- I.C. Golaknath (1967) denied that power.
- The 24th Amendment restored constituent-power language.

IDENTITY LIMIT

- Kesavananda Bharati (1973): amend every provision, damage no basic structure.
- Indira Nehru Gandhi v. Raj Narain (1975) protected democratic elections and review.
- Minerva Mills (1980) protected limited power and FR-DPSP harmony.

NINTH SCHEDULE EXTENSION

- Waman Rao (1980) fixed 24 April 1973 as cut-off.
- I.R. Coelho (2007) required impact review after the cut-off.
- Judicial review remains part of the protected identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) replaced an absolute bar on amending Fundamental Rights with a judicially enforceable limit protecting the Constitution's basic identity.

04

STAGE 04

BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND CASE-ATTRIBUTED

CONSTITUTIONAL SUPREMACYDEMOCRACYSECULARISMFEDERALISMRULE OF LAWJUDICIAL REVIEWINDEPENDENT JUDICIARYLIMITED AMENDING POWER

GOVERNMENT FORM

- Constitutional supremacy.
- Republican and democratic government.
- Free and fair elections: secularism; federalism.

LEGAL ARCHITECTURE

- Separation of powers and rule of law.
- Judicial review and judicial independence.
- Limited amending power.

RIGHTS AND BALANCE

- Dignity, liberty and equality within the rights architecture.
- Harmony between Fundamental Rights and DPSP.
- The list is illustrative, not closed or unanimously authored.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Different judges in Kesavananda Bharati (1973) proposed overlapping lists; the narrow majority ratio is the limitation on destruction of basic structure, not one unanimous catalogue.

05

STAGE 05

NINTH SCHEDULE: POST-1973 IMPACT REVIEW

ARTICLE 31BNINTH SCHEDULEFIRST AMENDMENT24 APRIL 1973WAMAN RAO (1980)I.R. COELHO (2007)PART III IMPACTREVIEWABLE

Find insertion date

→

Identify affected right

→

Test basic-structure impact

→

Frame narrow remedy

ORIGIN

- The First Amendment inserted Article 31B and the Ninth Schedule.
- Listing supplied a protective constitutional device.
- Placement occurs through constitutional amendment.

CUT-OFF AND TEST

- Waman Rao (1980) fixes 24 April 1973.
- I.R. Coelho (2007) reviews post-cut-off insertions.
- The inquiry asks whether protected Part III principles suffer basic-structure damage.

TRAPS

- Reviewability is not automatic invalidity.
- Listing is not permanent immunity.
- Pre-cut-off status does not erase every other constitutional issue.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 31B validates the Acts and Regulations placed in the Ninth Schedule notwithstanding inconsistency with Part III, subject to later basic-structure review of the constitutional amendment that grants that protection.

06

STAGE 06

ANJUM KADARI (2024): THE ORDINARY-STATUTE BOUNDARY

CONSTITUTIONAL AMENDMENTORDINARY STATUTELEGISLATIVE COMPETENCEPART IIICONCRETE PROVISIONNO FREE-STANDING TEST2024 INSC 831

AMENDMENT REVIEW

- Constitutional amendments face direct basic-structure review.
- The inquiry arises from Article 368 limits.
- Damage to identity is the substantive test.

ORDINARY-LAW REVIEW

- Ordinary laws are tested through competence, Part III and other provisions.
- Basic features can guide interpretation.
- They do not become a free-standing super-Article.

EXAM CORRECTION

- Identify Article X embodying the feature.
- Do not invalidate a statute only through an undefined structural slogan.
- Anjum Kadari (2024) supplies the current boundary.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal cases may use separation of powers and judicial independence, but the statutory defect should be connected to Articles governing judicial review, equality, court substitution or another express constitutional command.

07

STAGE 07

CURRENT EVIDENCE: 131ST BILL, 106TH COMMENCEMENT AND ARTICLE 334A

106TH AMENDMENTS.O. 1922(E)ARTICLE 334ACOMMENCED NOT OPERATIONAL131ST BILLDEFEATED PROPOSALJUDICIAL REVIEWCOUNTER-MAJORITARIAN

106TH AMENDMENT

- S.O. 1922(E) commenced the framework on 16 April 2026.
- Article 334A still requires census publication and delimitation.
- Commencement does not mean operational reservation.

131ST BILL

- The 2026 Bill was negated in Lok Sabha.
- It illustrates dual-majority arithmetic.
- It is not law, precedent or a current seat ceiling.

STATUS RULE

- Use exact source and date for each changing claim.
- Commenced does not mean operational.
- A defeated Bill is evidence, not law or precedent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 131st Bill is a defeated proposal, while the 106th Amendment has commenced but reservation still awaits Article 334A census-publication and delimitation gates.

08

STAGE 08

DOCTRINE EVALUATION: JUDICIAL REVIEW, NOT JUDICIAL SUPREMACY

UNWRITTEN LIMITCOUNTER-MAJORITARIANCONSTITUTIONAL SUPREMACYFUTURE DEMOCRACYACTUAL DAMAGENARROW REMEDY

CRITICISM

- The Constitution contains no closed basic-feature list.
- Judges review elected super-majorities.
- Open-ended identity reasoning can become uncertain.

DEFENCE

- Article 368 creates limited constituent power.
- Future elections, rights, federal voice and review need protection.
- Minerva Mills (1980) prevents a limited power from making itself unlimited.

DISCIPLINE

- Identify text and precedent.
- Prove actual damage, not policy dislike.
- Use a narrow, reasoned remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The doctrine is legitimate judicial review when courts identify a text-linked feature, prove actual constitutional damage and avoid converting disagreement into a policy veto.

09

STAGE 09

PRELIMS TRAPS AND VERIFIED PYQ CONTROL

ARTICLE 368DUAL MAJORITYSTATE RATIFICATIONCASE CHAINBASIC ELEMENTSNINTH SCHEDULEANJUM BOUNDARYMAINS SPINE

PRELIMS CONTROL

- No joint sitting; President shall assent.
- Ratification applies to the exact proviso list.
- Basic structure is non-exhaustive; post-1973 listing is reviewable.

PYQ ROUTES

- 2 Mains and 8 Prelims are verified.
- 2024 Q66 official local key is D.
- 2025 Q58 official local key is A; older keys remain inferred.

STATUS TRAPS

- 131st Bill: defeated proposal, not law.
- 106th Amendment: commenced, not operational.
- Post-1973 Ninth Schedule insertion: reviewable, not automatically void.

MECHANISM / VERDICT — Classify the route, apply the exact constitutional text, preserve status labels and then select the closest option.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exam precision depends on preserving the differences between amendment and ordinary law, reviewability and invalidity, and commencement and operational effect.

10

STAGE 10

10/15/20-MARK ANSWER ROUTES AND QUALIFIED VERDICT

10 MARKS15 MARKS20 MARKSPROCEDUREDOCTRINEEVALUATIONQUALIFIED VERDICT

10 MARKS

- Direct thesis and three to four dimensions.
- Use two or three exact Articles/cases.
- End with one qualification and verdict.

15 MARKS

- Separate procedure from substantive limit.
- Use four to six linked evidence units.
- Add application plus criticism/defence.

20 MARKS

- Trace design, chronology and applications.
- Integrate current evidence without treating proposals as law.
- Conclude: amend, do not destroy or replace.

MECHANISM / VERDICT — Decode directive → choose mark scale → build claim-evidence-analysis-qualification chain → compress deliberately → deliver a constitutional-supremacy verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 368 creates a wide constituent power, but procedure limits its exercise and the basic-structure doctrine limits its reach.

E

EXTRA

OPTIONAL ENRICHMENT: AMENDMENT VERSUS REPLACEMENT

OPTIONAL ONLYCONSTITUTIONAL IDENTITYREPLACEMENTCOMPARATIVE DOCTRINEASYMMETRIC RATIFICATION

ENRICHMENT

- Amendment preserves legal continuity; replacement claims a new constituent foundation.
- Comparative systems use text, eternity clauses or judicial doctrine.

USE WITH DISCIPLINE

- Comparative analogy cannot replace Indian cases.
- State ratification remains textually limited.
- Add only after the full Indian core is secure.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and remains subordinate to Article 368, Indian case law, current controls and PYQ analysis.

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